

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**

Office of City Clerk

October 22, 2019

(including continuation of the meeting on November 14, 2019 and November 19, 2019)

A special meeting of the Governing Body of the City of Cheyenne was held on this date beginning at 5:30 p.m. in Council Chambers for the purpose of conducting a contested case hearing in the matter of China Spa vs. the City of Cheyenne, relative to the emergent suspension/revocation of a Massage Business Establishment License. (Case #GB-01-19) Present were: COUNCIL MEMBERS – Mr. Case, Council President, Mr. Cook, Mr. Esquibel, Mr. Laybourn, Mr. Luna, Dr. Rinne, Mr. Roybal, and Mr. White. Absent: MAYOR: Marian J. Orr and Mr. Shanor. The pledge of allegiance was recited.

Also present were: Kris Jones, City Clerk; Michael O'Donnell, City Attorney, and Joe Chenchar, Assistant City Attorney, respondent, providing legal representation on behalf of the City's administration; Donald Miller, counsel representing petitioner China Spa and Robert C. Jarosh, hearing officer and legal counsel to City Council members.

Mr. Case, Council President, opened the meeting and relinquished duties of the chair to Robert C. Jarosh, hearing officer, to conduct the contested case hearing. Mr. Jarosh officially opened the hearing and made preliminary statements for the record involving the purpose and conduct of the hearing, noting those parties present, and provided procedural information. Mr. Jarosh advised that portions of the hearing would be closed to the public to conceal the identities of the alleged victims and perpetrator in accordance with requirements of Wyoming State law. Following opening statements by the petitioner and respondent, the City called witnesses who provided testimony and were cross-examined and introduced exhibits. Mr. Jarosh relinquished the chair to Mr. Case. Mr. Roybal moved to recess to Thursday, October 24th at 5:30 p.m. (pending securing a Mandarin translator), seconded by Mr. White. Motion carried. Voting "yes" all members present (10:51p.m.) The hearing was then recessed. The continuation was held on November 14th instead of October 24th due to availability of a translator. City Council members met to continue discussion and deliberations on Thursday, November 14, 2019 at 5:30 p.m. in Council Chambers. Those present on November 14, 2019 were: COUNCIL MEMBERS – Mr. Case, Council President, Mr. Cook, Mr. Laybourn, Mr. Luna, Mr. Roybal, and Mr. White. Absent: MAYOR: Marian J. Orr, Mr. Esquibel, Dr. Rinne, and Mr. Shanor. Also present were: Kris Jones, City Clerk; Michael O'Donnell, City Attorney, and Joe Chenchar, Assistant City Attorney, respondent, providing legal representation on behalf of the City's administration; Donald Miller, counsel representing petitioner China Spa and Robert C. Jarosh, hearing officer and legal counsel to City Council members. Mr. Case, Council President, reopened the meeting and relinquished duties of the chair to Mr. Jarosh, hearing officer. Additional City witnesses were called who provided testimony and were cross-examined. The City concluded presenting its witnesses and Donald Miller, counsel representing petitioner for China Spa called its first witness and introduced exhibits. Mr. Roybal moved to recess to Tuesday, November 19th at 5:30 p.m., seconded by Mr. Luna. Motion carried. Voting "yes" all members present (10:05 p.m.) The hearing was then

recessed. City Council members met to continue discussion and deliberations on Tuesday, November 19, 2019 at 5:30 p.m. in Council Chambers. Those present on November 19, 2019 were: COUNCIL MEMBERS – Mr. Case, Council President, Mr. Cook, Mr. Laybourn, Mr. Luna, Mr. Roybal, and Mr. White. Absent: MAYOR: Marian J. Orr, Mr. Esquibel, Dr. Rinne, and Mr. Shanor. Also present were: Kris Jones, City Clerk; Michael O'Donnell, City Attorney, and Joe Chenchar, Assistant City Attorney, respondent, providing legal representation on behalf of the City's administration; Donald Miller, counsel representing petitioner China Spa and Robert C. Jarosh, hearing officer and legal counsel to City Council members. Mr. Case, Council President, reopened the meeting and relinquished duties of the chair to Mr. Jarosh, hearing officer. Additional witnesses were called by Donald Miller, counsel representing petitioner China Spa, who provided testimony and were cross-examined, exhibits were introduced, and Mr. Miller provided a closing statement for the petitioner. Following the closing statement from the petitioner's legal counsel, Mr. Jarosh stated the evidence was closed and the contested case hearing was concluded and provided instruction to City Council members present with regard to ensuing deliberations. Mr. Case re-assumed duties of the chair and opened the floor to those City Council members present for the purpose of discussing and deliberating the matter before them. Following discussion, Mr. Roybal moved to suspend the Massage Business Establishment License of China Spa to December 11, 2019 plus 30 days (January 10, 2020). Following further discussion, vote on the motion resulted in an affirmative decision. Voting "yes" – all members present with the exception of Mr. Laybourn voting "no". Mr. Jarosh requested clarification of the ruling/s for the Findings of Fact, Conclusions of Law, and Order for review and action by City Council at a future meeting. Upon inquiry, Mr. Jarosh explained the ruling could include findings based the following municipal codes: 5.52.100(G, H, I, and J), 5.52.040(A)(12), 5.52.130 and 5.04.110 for violations involving licensing and public health and safety. Governing Body members present, by majority, declined to rule the findings of fact or enter conclusions of law related to allegations related to two instances of alleged criminal misconduct taking place at the Petitioner's business establishment, one in November 2018 and another in April 2019. Findings of Fact, Conclusions of Law, and Order were ruled solely on licensing related violations of 5.52.040(A)(12), which require massage business establishments to notify the City of the [n]ames and addresses of each massage therapist who will be employed, or who will be providing services through the proposed massage business establishment not the alleged criminal conduct.

Purpose of the continued special meeting having been met, Council President Case adjourned the continued meeting at 10:55 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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